

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BILAL ABDULLAH,

Plaintiff,

-against-

P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH
RODRIGUEZ (Shield #28899), P.O. "JOHN/JANE" LEONARDO
(actual first name and shield number unknown), THE CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

INDEX NO. 500709/2013

**AMENDED VERIFIED
COMPLAINT**

Plaintiff, by his attorneys, ASHER & ASSOCIATES, P.C., as and for his Amended
Verified Complaint, respectfully alleges, upon information and belief:

1. The plaintiff, BILAL ABDULLAH, at all times herein mentioned was and still is a
resident of the County of Kings and the State of New York.

2. At all times herein mentioned, defendant THE CITY OF NEW YORK (hereinafter
"NEW YORK"), was and still is a domestic municipal corporation organized and existing under
the laws of the State of New York, with its principal place of business situated in the County of
New York and the State of New York.

3. The defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD"),
at all times herein mentioned, was and still is a domestic municipal corporation organized and
existing under the laws of the State of New York, with its principal place of business situated
in the County of New York and the State of New York.

4. On February 13, 2012, the defendant P.O. ANDRE PEREZ (Shield #12199) was a
citizen of the United States and the State of New York and was employed by the NYPD as a
police

officer.

5. On February 13, 2012, the defendant P.O. JOSEPH RODRIGUEZ (Shield #28899) was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.

6. On February 13, 2012, the defendant P.O. "JOHN/JANE" LEONARDO (Shield #unknown) was a citizen of the United States and the State of New York and was employed by the NYPD as a police officer.

7. That notice of the plaintiff's claim and intention to sue and of the time when and the place where the injuries alleged herein were incurred and sustained, was duly served by said plaintiff upon the defendants, NEW YORK and NYPD, on or about the 11th day of May, 2012 and within ninety (90) days of the causes of action herein accrued, all as required by the General Municipal Law, Section 50-e.

8. That at least thirty (30) days have elapsed since the demand or claim upon which this action is founded was served upon the aforementioned defendants for adjustment and the defendants have neglected and/or refused to make an adjustment or payment thereon for said period of thirty (30) days after such presentation.

9. That on October 23, 2012, plaintiff submitted to the statutory hearing concerning the justness of his claim.

10. That plaintiff complied with all applicable Sections of the General Municipal Law that are conditions precedent to bringing this action against the defendants, NEW YORK and NYPD.

11. That this action has been commenced within one year after the cause of action of plaintiff accrued.

12. At all times hereinafter mentioned, the defendant NYPD was and is a department or

agency of defendant NEW YORK that was and is responsible for the appointment, training, supervision, promotion and discipline of the police officers of the NYPD, including any individually named defendants herein.

13. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the NEW YORK streets and protect the well-being and safety of the public.

14. At all times hereinafter mentioned, the defendants NEW YORK and NYPD employed the warrant officers, police officers, jailers, wardens, magistrates, court attendants, clerks, district attorney and his assistants, drivers, and others hereinafter mentioned in this complaint.

15. Upon information and belief, the defendants NEW YORK and NYPD owned the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

16. Upon information and belief, the defendants NEW YORK and NYPD maintained the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

17. Upon information and belief, the defendants NEW YORK and NYPD controlled the various courthouses, jails and their equipment, police stations, and the vans used to transport prisoners, all hereinafter mentioned in this complaint.

18. That on February 13, 2012 and at all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and NEW YORK, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

19. At all relevant times, the defendant NEW YORK was responsible for the training of

its police officers, and more particularly, the individually named defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown).

20. At all relevant times, the defendant NYPD was responsible for the training of its police officers, and more particularly, the individually named defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown).

21. At all relevant times, the defendant NEW YORK was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of the NYPD.

22. At all relevant times, the defendant NYPD was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and employees of its agency.

23. At all times mentioned herein, the defendant NEW YORK knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff BILAL ABDULLAH.

24. At all times mentioned herein, the defendant NYPD knew or should have known of the bias, bad judgment, abusive and violent tendencies and other unlawful propensities of the officers involved in the violation of the plaintiff's civil rights, the assault and battery and/or negligence causing physical injury to the plaintiff, the use of excessive force in effectuating the

arrest of the plaintiff, the intimidation and intentional and/or negligent infliction of emotional distress of plaintiff BILAL ABDULLAH.

25. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff BILAL ABDULLAH.

AS AND FOR A FIRST CAUSE OF ACTION

26. On February 13, 2012, the plaintiff BILAL ABDULLAH was lawfully inside his apartment designated as 3G within 832 Knickerbocker Avenue, Brooklyn, NY when members of the 83rd Precinct of the New York Police Department, presented at the door demanding that he leave his apartment and go to the hospital with them.

27. Based upon information and belief, the officers possessed no warrants nor had permission or consent for their actions. When plaintiff refused to leave the apartment two police officers struck him with their batons on the back of his legs.

28. Thereafter, plaintiff was maced, tightly handcuffed, escorted down to the ambulance and forced to enter the ambulance.

29. Plaintiff was forced to lay on his tightly cuffed arms while on the gurney, and remained tightly cuffed for several hours at Woodhull Hospital.

30. Plaintiff BILAL ABDULLAH was caused to suffer severe personal injuries including but not limited to a fracture of the left ulna.

31. Although plaintiff protested that he did not want nor need to go to the hospital, he was taken into custody and brought to Woodhull Hospital without his permission or consent.

32. Beginning on February 13, 2012 and continuing the plaintiff was subjected to both verbal and physical abuse by multiple members of the NYPD.

33. Beginning on February 13, 2012 and continuing through his wrongful confinement at

Woodhull Hospital, plaintiff was continually subjected to a pattern of harassment by members of the NYPD, was assaulted and subjected to a battery all the while professing his innocence.

34. Based upon information and belief, the officers, possessed no warrants, had no permission nor consent, nor any legal justification for their actions.

35. Plaintiff was handcuffed, held in custody, restrained of his liberty and forced to spend several hours in the hospital.

36. This arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

37. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

38. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be handcuffed, arrested and detained without charging him with a crime.

39. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused him great humiliation and as a result of which he has been damaged.

40. Prior to the arrest, plaintiff had enjoyed a good reputation in the City of New York and State of New York.

41. No charges were ever brought against the plaintiff..

42. By reason of the foregoing false arrest and false imprisonment, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

43. At all relevant times and in all their actions described herein, the defendants were acting under the color of the statutes, ordinances, regulations, policies, customs and usages of the

NYPD and NEW YORK, pursuant to their authority as employees, servants and agents of the NYPD, within the scope of employment and incidental to their otherwise lawful duties and functions as agents, servants and employees.

44. At all relevant times, the defendant NEW YORK was responsible for the actions of its police officers.

45. The conduct and injuries complained of herein ensued without any negligent or culpable conduct on the part of the plaintiff BILAL ABDULLAH.

46. To date, as a direct result and proximate result of all defendants' actions, plaintiff has suffered and continues to suffer physical and emotional pain, permanent physical damage, serious mental anguish, psychological and emotional distress and various other physical and psychological injuries.

47. Due to the foregoing, plaintiff BILAL ABDULLAH is entitled to damages.

AS AND FOR A SECOND CAUSE OF ACTION

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 46, inclusively with the same force and effect as if set forth fully and at length set forth herein.

49. On the 13th day of February, 2012 and continuing, the defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), without just cause or provocation and in violation of proper and appropriate police conduct, and with maliciousness and violence, used excessive force in effecting the arrest of plaintiff BILAL ABDULLAH resulting in serious injury.

50. That the defendants, their agents, servants and employees, acting as agents and on

behalf of the NEW YORK and NYPD and within the scope of their employment, intentionally and maliciously used excessive force, beyond what any reasonable officer in the circumstances would have used while effecting an arrest of plaintiff BILAL ABDULLAH, and that no supervisor or superior officer intervened to prevent the use of such excessive force.

51. By reason of the aforesaid, plaintiff BILAL ABDULLAH suffered great physical damage and pain, intimidation and fear, conscious pain and suffering and was otherwise damaged.

52. The acts and conduct of defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), as alleged in the foregoing paragraphs, constitute objectively unreasonable, unnecessary and excessive force in effecting an arrest in violation of the Eighth Amendment to the United States Constitution and 42 U.S.C. §1983.

53. Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown) intentional and objectively unreasonable, unnecessary and excessive use of force caused plaintiff to be placed in reasonable fear of imminent harmful and offensive bodily contact.

54. Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown) intentionally and wrongfully engaged in physical contact with plaintiff without plaintiff's consent, injuring plaintiff.

55. Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number

unknown) conduct in arresting, assaulting and using objectively unreasonable, excessive and unnecessary force against plaintiff without cause or plaintiff's consent, abused their power and authority as employees of the NYPD and under the color of state and/or local law.

56. By reason of their acts and omissions, Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), acting under color of state law and within the scope of their authority, in gross and wanton disregard of plaintiff's rights subjected plaintiff to an unreasonable seizure in violation of the Fourth and Fourteenth Amendments of the United States Constitution.

57. The conduct of Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899) and P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown) in this cause of action was so egregious as to be regarded as atrocious and intolerable in a civilized society.

58. As a result of the conduct of Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899), P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), NEW YORK and NYPD, plaintiff suffered serious physical injury causing plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of Plaintiff's life.

59. As a result of the conduct of Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899), P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), NEW YORK and NYPD, plaintiff has been forced to incur, past, present and future medical expenses and has been adversely affected in his employment and in

his ordinary life's pursuits and, in addition, was emotionally traumatized and was caused, permitted and allowed to fear for his physical safety and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

60. In addition, the acts of the Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899), P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), NEW YORK and NYPD were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the plaintiff and, in addition to all of the measures of relief to which plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

AS AND FOR A THIRD CAUSE OF ACTION

61. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 60, inclusively with the same force and effect as if set forth fully and at length set forth herein.

62. At all times material to this complaint, defendant NEW YORK, acting through its police department, NYPD, has in effect de facto policies, practices, customs and usages that were a direct and proximate cause of the unconstitutional conduct of the defendant officers.

63. These policies, practices and customs include, inter alia, the use of excessive force in making arrests.

64. Upon information and belief, defendant NEW YORK failed to effectively screen, hire, train, supervise and discipline its detectives, sergeants, officers and other employees, including the defendant officers, sergeants and employees herein, with respect to their propensity to use their police power in an unduly aggressive and violent manner, and to have a propensity to use excessive force in executing their police duties, and for their failure to protect citizens from unconstitutional conduct of other detectives, sergeants and employees, thereby permitting and allowing the defendant officers, sergeants and employees herein to be in a position to maliciously assault and batter the plaintiff, without cause of justification, in a demonstration of the excessive force in effecting the arrest of plaintiff BILAL ABDULLAH, that was so clearly grossly disproportionate under the circumstances, that it amounted to an abuse of official power that shocks the conscience, and to otherwise cause him injury and violate his constitutional rights, and/or permit these actions to take place with their knowledge and/or consent.

65. Upon information and belief, defendant NEW YORK maintained an inadequate structure for risk containment and stress management relative to its detectives, sergeants, officers and employees, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient, at the time of selection of detectives, sergeants, officers and employees and thereafter during their employment, in its ability to evaluate and exchange information within the command structure of the police department about the performance of individual detectives, sergeants, officers and employees; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer or employee; and in its ability to otherwise put the command and/or staff structure on notice than an individual or individuals were at significant levels of risk to the public at large. The effect

of this was to permit detectives, sergeants, officers and employees to function at levels of significant and substantial risk to the public in general.

66. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant NEW YORK has permitted and allowed the employment and retention of individuals as detectives, sergeants, officers and employees whose individual circumstances place the public or segments thereof at substantial risk of being the victims of unlawful and/or unreasonable behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to the plaintiff herein.

67. The acts and conduct of defendant NEW YORK as set forth above in the previous paragraphs deprived plaintiff BILAL ABDULLAH of his rights, privileges and immunities under the laws and Constitution of the United States; in particular the rights to be secure in his person and property, to due process under the law, and the right to be free from unlawful seize, assault and battery, the excessive use of physical force intended to cause physical injury, and the intentional and/or negligent infliction of emotional distress.

68. By these actions, defendant NEW YORK has deprived plaintiff BILAL ABDULLAH of rights secured by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. §1983 and the New York State Constitution, Article I, §§ 6, 11, and 12.

69. As a result of the foregoing, plaintiff BILAL ABDULLAH sustained great physical injuries, great emotional injuries and was otherwise harmed, damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION

70. Plaintiff repeats, reiterates, and realleges each and every allegation

contained in paragraphs 1 through 68, inclusively with the same force and effect as if set forth fully and at length set forth herein.

71. Defendants P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899), P.O. "JOHN/JANE" LEONARDO (actual first name and shield number unknown), NEW YORK and NYPD, under the color, conspired with each other to undertake a course of conduct to injure, oppress, threaten, harass and intimidate plaintiff BILAL ABDULLAH, denying him free exercise and enjoyment of the rights and privileges and equal protection of the law secured to him by the Constitution, including the rights to be free from excessive force.

72. The aforementioned defendants, under the color of law, conspired with each other to undertake a course of conduct to bear false witness and/or to bear false testimony and/or to produce false evidence in an effort and in violation of plaintiff BILAL ABDULLAH's constitutional rights to be free from excessive force.

73. As a result of all foregoing conduct and acts of the defendants with respect to the arrest and subsequent events as alleged above, Plaintiff suffered serious physical, mental and emotional injuries as aforesaid, requiring medical and therapeutic treatment and follow-up care. He also suffered serious reputation and economic injuries.

74. The acts and conduct described above deprived Plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police officers acting under color of law;
- c. To be free from malicious prosecution by police officers acting under color of law;

- d. To be free from abuse of process by police officers acting under color of law;
- e. To be entitled to the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law.

75. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A FIFTH CAUSE OF ACTION

76. Plaintiff repeats, reiterates, realleges and reaffirms each and every allegation contained in paragraphs 1 through 74, inclusively with the same force and effect as if fully and at length set forth herein.

77. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

78. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the NEW YORK and State of New York, County of Kings, and under the authority of their office as police officers for such city and county.

79. The acts and conduct described above deprived plaintiff of his rights:

- a. To freedom of speech and association;
- b. To be free from false arrest and imprisonment without probable cause by police

officers acting under color of law;

- c. To be free from malicious prosecution by police officers acting under color of law;
- d. To be free from abuse of process by police officers acting under color of law;
- e. To the free exercise of due process without wrongful restraint by police officers acting under color of law;
- f. To be free of unreasonable seizure by police officers acting under color of law;
- g. To not have excessive force used against him by police officers acting under color of law; and
- h. To not have summary punishment imposed upon him by police officers acting under color of law;

all in violation of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and 42 U.S.C. §1983.

80. The acts, conduct and behavior of these defendants and each of them were performed knowingly, intentionally and maliciously, by reason of which plaintiff is entitled to an award of punitive damages.

81. As a result of the conduct of defendants, plaintiff suffered serious physical injury causing plaintiff to experience pain and suffering, future pain and suffering, disabling physical symptoms and economic injuries. All of said injuries may be permanent and all have caused diminution in the quality of plaintiff's life.

82. As a result of the conduct of defendants, plaintiff has been forced to incur, past, present and future medical expenses and was and continues to be deprived of his privacy and liberty, has been adversely affected in his employment and in his ordinary life's pursuits and, in addition, was

emotionally traumatized and was caused, permitted and allowed to fear for his physical safety, suffer humiliation, embarrassment, anxiety and ridicule and suffer all the disabling mental and emotional symptoms of such injuries, all of which have caused diminution in the quality of Plaintiff's life and may be permanent.

83. In addition, the acts of the defendants were so egregious and reprehensible and were performed in a manner which so violates the law and which were so outrageous that it constitutes conduct that no civilized society should be required to tolerate and, in addition to all the damages inflicted to the Plaintiff and, in addition to all of the measures of relief to which plaintiff may properly be entitled herein, Defendants should also be required to pay punitive damages to punish them for their reprehensible conduct and to deter them from such conduct in the future, and as an example to others similarly situated.

84. Due to the foregoing, plaintiff is entitled to damages.

WHEREFORE, the plaintiffs demand:

a. judgment awarding damages on the FIRST CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

b. judgment awarding damages on the SECOND CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

c. judgment awarding damages on the THIRD CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

d. judgment awarding damages on the FOURTH CAUSE OF ACTION, in an

amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

e. judgment awarding damages on the FIFTH CAUSE OF ACTION, in an amount exceeding the monetary jurisdictional limits of all lower Courts which would otherwise have jurisdiction;

f. interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: New York, New York
February 12, 2015



By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
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(212) 227-5000

ZACHARY W. CARTER
Attorneys for Defendants THE CITY OF NEW YORK and
NEW YORK CITY POLICE DEPARTMENT
Corporation Counsel, City of New York
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Brooklyn, New York 11201
(718) 222-2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO. 500709/2013

BILAL ABDULLAH,

Plaintiff,

-against-

ATTORNEY'S
VERIFICATION

P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH
RODRIGUEZ (Shield #28899), P.O. "JOHN/JANE" LEONARDO
(actual first name and shield number unknown), THE CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

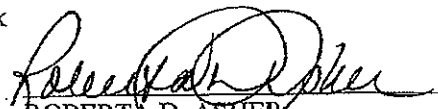
I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiff.

I have read the foregoing Amended Complaint and know the contents thereof; the
same is true to my own knowledge except as to the matters therein stated to be alleged on
information and belief and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because he is not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's
knowledge are correspondence had with the said plaintiff, information contained in the said
plaintiff's file, which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
February 12, 2015


ROBERTA D. ASHER

Index No. 500709/2013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

BILAL ABDULLAH,

Plaintiff,

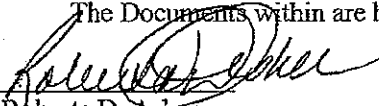
-against-

P.O. ANDRE PEREZ (Shield #12199), P.O. JOSEPH RODRIGUEZ (Shield #28899), P.O.
"JOHN/JANE" LEONARDO (actual first name and shield number unknown), THE CITY OF
NEW YORK and NEW YORK CITY POLICE DEPARTMENT,

Defendants.

SUMMONS and AMENDED VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: 

Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiff

111 John Street

Fourteenth Floor

New York, New York 10038

(212) 227-5000

PLEASE TAKE NOTICE

NOTICE OF

ENTRY

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the within named Court on , 2015 .

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2015 , at
9:30 A.M.

Dated: